

ORIGIN AND HISTORY OF CRIMINAL LAW

Criminal law deals with injuries that are considered as grave as to be an offense against the whole community, and they are prosecuted in the name of the state. Criminal law is intended to prevent citizens from purposefully hurting each other and it involves activities that have been affirmed as illegal by the state – Example murder, armed robbery, assault, etc. in a criminal case, the police usually investigate the case and the state or federal government brings the accused to trial and the judgment usually results in a jail term or fine or both.

Essentially, the Nigerian criminal law derives its origin from the English common law. Historically, the common law has played a dominant role in the in the expounding of the Nigerian criminal law. In Nigeria, the primary source of criminal law is Nigerian statutes/legislation.

There are two categories of statutes in Nigeria relating to criminal law:

1. Federal and state statutes that define technical offences which are made to regulate the conduct of people by the threat of penalties – Example Money Laundering Act, NDLEA Act, etc. These laws/statutes define certain offences and stipulate appropriate penalties.
2. Criminal code – which applies in the southern states and the Penal code which applies in the Northern states.

NOTE: that the primary focus of this course is on the general principles of criminal law as it relates to general offences such as assault, rape, murder, etc.

PRE 1916

In pre-colonial Nigeria, there were a large number of systems of customary criminal law in existence which regulated the standard of behavior of the people. These normative systems were generally unwritten. In the south there were simple systems of social norms based on units – Example the family, the age grade, village or groups of villages. In the north, there was the Muslim written law of crime, which was dominated by the Maliki School.

In 1863 the English common law, including the common law of crime was introduced in Lagos colony. But outside Lagos there were various forms of customary criminal law in practice. However, the most common feature of these forms of customary criminal law was that it was unwritten in nature.

In 1904 Lord Lugard introduced a criminal code ordinance in northern Nigeria with the purpose of consolidating and amending the criminal law systems. The code was modeled closely to the Queensland code of 1899.

NOTE: that the Queensland code of 1899 was based mainly on a criminal code drafted to replace the common law by Lord James Fitzstephen in 1878.

1916 – 1933:

The criminal code ordinance that was introduced by Lord Lugard in northern Nigeria in 1904 was later extended to the entire country in 1916 after the amalgamation of Nigeria in 1914. The application of the code strictly limited initially – that is it exempted Native courts from its operations. This exemption continued even after the code was extended to cover the entire country in 1916. Therefore, after 1916 most criminal cases in Nigeria were still governed by native law and custom. The situation became an unhappy one for the colonial administration, whereby two or more systems of criminal law existed side by side.

NOTE: that the situation was worse in northern Nigeria where the Maliki school of thought was firmly entrenched. The Maliki law contained many rules that were unacceptable to those trained in English common law, including:

1. Under Maliki law, the offence of homicide which included any hostile or unjustified assault resulting in death (even though unintended or unlikely) was punishable by death.
2. The concept of provocation which was acceptable under the criminal code was not admitted under Maliki law. Under the criminal code, provocation was capable of reducing murder to manslaughter and the maximum sentence would be life imprisonment. Whereas under Maliki law, an accused that kills under gross provocation would be found guilty of murder and sentenced to death.
3. Maliki law became an integral part of the northern Moslems way of life and there was no desire to undermine its authority.

1933 – 1958:

By 1933 there arose the need for the abolition of customary criminal law as part of the overhaul of the colonial legal system. The need to abolish customary criminal law was not generally accepted but it however led to the amendment of S. 4 of the Criminal code ordinance.

Section 4 of the Criminal code ordinance initially read:

No person shall be liable to be tried or punished in any court in Nigeria other than a native tribunal, for any offence except under the express provision of the code or some ordinance or some order-in-council made by his majesty for Nigeria.

By the combined provision of S. 4 of the Criminal code ordinance and S. 10(1) and (2) of the Native courts ordinance, customary criminal law was not abolished.

In 1947 it was the view that the 1933 amendment was intended to sweep away customary criminal law except with respect to few offences not covered by the code. The native courts commission of inquiry was of the view that the words 'other than a native tribunal' in S. 4 of the Criminal code ordinance were removed with the intention that punishments only should be affected. Thus where a native court charges a person for offences under native law and custom, the punishment to be inflicted where the offence is also one under the criminal code must be in accordance with the punishments in the Criminal code.

In *Gubba v. Gwanda Native Authority* (1947) 12 WACA 141, it was held that Moslem law should have considered the plea of provocation. This was in accordance with the changing attitudes towards customary criminal law. The WACA held that the correct interpretation of the 1933 amendment of S. 4 was:

1. Where a native court tried an offence which was an offence only against native law and custom, then it could try the offence in accordance with native law and custom and inflict the customary penalty, but
2. Whenever the offence tried was an offence under the code, then even though it might also be an offence against native law and custom, the only law to be applied was the Criminal code.

NOTE: the case brought to an end customary criminal law because there were very few offences that were not covered by the code.

However, in *Maizabo v. Sokoto Native Authority* (1957) NRNLR 133 it was held that native or customary courts were empowered to apply customary criminal law even if there was a provision in the code. But native courts must not exceed the maximum that could have been imposed if the case was tried under the criminal code.

NOTE: that in such Situations, native courts would apply two sets of law – (a) native law and custom to ascertain the guilt of the accused, and (b) the Criminal code to ascertain the sentence.

1958 – Date:

There was the need to re-examine the position of the law, particularly in the northern region. The major setback was that the criminal code ordinance was not drafted for a Moslem community and was not acceptable in the north.

In 1958 the northern region government set up a judicial committee to establish an acceptable criminal justice system. The committee proposed the whole acceptance of English criminal law, the whole acceptance of Islamic law or a hybrid between both of them. It however recommended that a hybrid system was the best choice.

In 1959 the Penal code was adopted to replace the criminal code ordinance in the north. The Penal code was based mostly on the code of Sudan which was largely modeled on the Indian Penal code of 1860. The Indian penal code was drafted by Lord Macaulay and it derives considerably from the common law. In northern Nigeria, the customary criminal law is made clear by S. 3(2) of the Penal code which provides that:

No person is liable to punishment under native law and custom

However, reference to native law and custom is not entirely excluded.

South:

It was not difficult to get around the situation in southern Nigeria because customary criminal law was not organized. In southern Nigeria, it was decided at the 1958 constitutional conference to abolish customary Criminal law entirely.

S. 22(10) of the 1963 Constitution was to the effect that:

No person shall be convicted of a criminal offence unless that offence is defined and the penalty thereof is prescribed by written law

See also – S. 36(12) CFRN 1999

In *Aoko v. Fagbemi* (1961) 1 All NLR 400, the court rejected an attempt to prosecute a woman on the basis of an alleged adultery. Although adultery was a customary offence, the court discharged and acquitted the accused because adultery was not prescribed as an offence in the Criminal Code of southern Nigeria.

Nigeria achieved independence in 1960 and since then, both the Criminal code and the Penal code have added many amendments to reflect the norms, standards and values of Nigerian people. Today the main source of Nigerian criminal law is Nigerian statutes.

Relationship between the Criminal and Penal Codes

Each code covers offences committed within the territory to which it applies and only within that territory. A Moslem from the North would be safe from prosecution if he came to the south to commit adultery or drink alcohol. The Criminal code and the Penal code both contain identical provisions for dealing with the problem.

Where an offence comprises several elements and some occur outside the territory?

If the initial act or omission occurs within the territory covered by a code and other elements occur outside, then the offender is liable as if all the elements had occurred within the territory.

However, if the initial act or omission occurs outside the territory, but other elements occur within the territory and the offender enters the territory, he will be liable as if the initial act had occurred within the territory.